contract, was a legal document to be amended whenever it suited the government or came in the way of the supposed urges of the people'.[34]

Furthermore, by using an indirectly elected provisional parliament to amend the 'heart and soul' of the Constitution even before the inaugural general election, disregarding widespread protestations[35] – from the president,[36] the speaker,[37] the leader of opposition down to civil society organizations – Nehru failed to account for the need to maintain constitutional rectitude and form positive conventions for the future; even if he believed this was a fair trade-off for the sake of progress or demanded by the gravity of the issues at hand.[38] Transplanting Westminster-style democracy to India, noted the constitutional historian Harshan Kumarasingham, 'demanded instant conventions as the polity had not had the benefit of centuries of evolution. Therein lay the problem and the opportunity for the local executive.'[39] With the First Amendment, India's constitutional journey began with an unhealthy emphasis on executive supremacy, deprivileging individual rights and treating Fundamental Rights as secondary to more important electoral and ideological considerations.[40] Such open disregard for democratic propriety on the part of independent India's first government, even if not extra-constitutional in itself, helped foster a spirit of authoritarianism and constitutional subversion, as Mookerjee had predicted. Originally conceived as permanent guarantees, Fundamental Rights became – to quote Chief Justice Hidayatullah[41] – 'the plaything of special majorities'.[42]

Much of this was exacerbated by the reasoning Nehru presented in Parliament as justification for the amendment: judicial striking down of legislation as a denial of democracy, Fundamental Rights as obsolete remnants of the French Revolution, the primacy of the government's promises over the Constitution, the Constitution as an impediment to the will of the people, recurring references to unseen dangers that threatened the survival of the country, the need to curb 'unbridled criticism', the duty of the state to champion socio-economic transformation over the protection of individual freedom and finally, the desire to fulfil the promises he had